

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 COMMITTEE SUBSTITUTE
4 FOR ENGROSSED
5 HOUSE BILL 3755

By: Sterling of the House

and

6 Stanley of the Senate

7
8
9 COMMITTEE SUBSTITUTE

10 [Oklahoma Juvenile Code - juvenile detention
11 facilities - medication prescribed for juveniles -
12 reimbursement - Juvenile Detention Prescription
13 Medication Fund - codification - effective date]

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 10A O.S. 2021, Section 2-3-103, as
16 amended by Section 1, Chapter 242, O.S.L. 2022 (10A O.S. Supp. 2025,
17 Section 2-3-103), is amended to read as follows:

18 Section 2-3-103. A. Provision shall be made for the temporary
19 detention of children in a juvenile detention facility or the court
20 may arrange for the care and custody of such children temporarily in
21 private homes, subject to the supervision of the court, or the court
22 may provide shelter or may enter into a contract with any
23 institution or agency to receive, for temporary care and custody,
24 children within the jurisdiction of the court. The Office of

1 Juvenile Affairs shall not be ordered to provide detention unless
2 ~~said~~ the Office has designated and is operating detention services
3 or facilities.

4 B. County sheriffs of the arresting agency, their designee, any
5 peace officer, private contractors under contract with the Office of
6 Juvenile Affairs for transportation services, or juvenile court
7 officers shall provide for the transportation of juveniles to and
8 from secure detention for purposes of admission, interfacility
9 transfer, discharge, medical or dental attention, court appearance,
10 or placement designated by the Office. No private contract for
11 transportation services shall be entered into by the Office unless
12 the private contractor demonstrates to the satisfaction of the
13 Office that such contractor is able to obtain insurance or provide
14 self-insurance to indemnify the Office against possible lawsuits and
15 meets the requirements of subparagraphs a, b and d of paragraph 4 of
16 subsection C of this section. The Office of Juvenile Affairs shall
17 not be ordered to provide transportation for a juvenile who is
18 detained in or is destined for secure detention. The Office of
19 Juvenile Affairs shall provide reimbursement to the entity
20 transporting juveniles for necessary and actual expenses for
21 transporting juveniles who are detained in or destined for a secure
22 detention center as follows:

23 1. A fee for the cost of personal services at the rate of
24 Seventeen Dollars (\$17.00) per hour;

1 2. Mileage reimbursement for each mile actually traveled at the
2 rate established in the State Travel Reimbursement Act;

3 3. Meals for transporting personnel, not to exceed Ten Dollars
4 (\$10.00) per meal; and

5 4. Meals for juveniles being transported, not to exceed Ten
6 Dollars (\$10.00) per meal.

7 The Office of Juvenile Affairs shall process and mail
8 reimbursement claims within sixty (60) days of receipt. Payments
9 for services provided by a county sheriff's office shall be paid to
10 the county and deposited in the service fee account of the sheriff.

11 C. 1. All juvenile detention facilities shall be certified by
12 the Office of Juvenile Affairs. To be certified, a juvenile
13 detention facility shall be required to meet standards for
14 certification promulgated by the Board of Juvenile Affairs.

15 2. The board of county commissioners of every county shall
16 provide for the temporary detention of a child who is or who may be
17 subject to secure detention and may construct a building or rent
18 space for such purpose. The boards of county commissioners shall
19 provide for temporary detention services and facilities in
20 accordance with the provisions of the State Plan for the
21 Establishment of Juvenile Detention Services adopted pursuant to
22 subsection D of this section and in accordance with subsections A
23 and C of Section 2-7-608 of this title. The boards of county
24 commissioners are hereby authorized to create multicounty trust

1 authorities for the purpose of operating juvenile detention
2 facilities.

3 3. In order to operate the juvenile detention facilities
4 designated in the State Plan for the Establishment of Juvenile
5 Detention Services and in subsections A and C of Section 2-7-608 of
6 this title, the boards of county commissioners in the designated
7 host counties shall:

8 a. operate the juvenile detention facility through a
9 statutorily constituted juvenile bureau subject to the
10 supervision of the district court, ~~or~~

11 b. operate the juvenile detention facility by employing a
12 manager who may employ personnel and incur other
13 expenses as may be necessary for its operation and
14 maintenance, or

15 c. contract with a public agency, private agency,
16 federally recognized tribe, or single or multi-county
17 trust authority for the operation of the juvenile
18 detention facility. In the event any board of county
19 commissioners contracts with a public or private
20 agency or a federally recognized tribe, pursuant to
21 the provisions of this section, the Office is
22 authorized to directly contract with and pay such
23 public or private agency or federally recognized tribe
24 for provision of detention services. Any contract

1 with a federally recognized tribe shall become
2 effective upon approval by the board of county
3 commissioners.

4 4. Management contracts for privately operated detention
5 facilities shall be negotiated with the firm found most qualified by
6 the board of county commissioners. However, no private management
7 contract shall be entered into by the board unless the private
8 contractor demonstrates to the satisfaction of the board:

- 9 a. that the contractor has the qualifications,
10 experience, and personnel necessary to implement the
11 terms of the contract,
- 12 b. that the financial condition of the contractor is such
13 that the term of the contract can be fulfilled,
- 14 c. ~~that~~ the ability of the contractor to obtain insurance
15 or provide self-insurance to indemnify the county
16 against possible lawsuits and to compensate the county
17 for any property damage or expenses incurred due to
18 the private operation of the juvenile detention
19 facility, and
- 20 d. that the contractor has the ability to comply with
21 applicable court orders and rules of the Office of
22 Juvenile Affairs.

23 5. All counties to be served by a secure juvenile detention
24 facility may, upon the opening of such facility, contract with the

1 operators for the use of the facility for the temporary detention of
2 children who are subject to secure detention; provided, however, a
3 jail, adult lockup, or other adult detention facility may be used
4 for the secure detention of a child as provided for in Section 2-3-
5 101 of this title.

6 6. Expenses incurred in carrying out the provisions of this
7 section shall be paid from the general fund of the county or from
8 other public funds lawfully appropriated for such purposes or from
9 private funds that are available for such purposes. A county may
10 also issue bonds for the construction of detention facilities.

11 7. The operation of a juvenile detention facility by a county
12 shall constitute a quasi-judicial function and is also hereby
13 declared to be a function of the State of Oklahoma for purposes of
14 the Eleventh Amendment to the United States Constitution. In
15 addition, no contract authorized by the provisions of this section
16 for the providing of transportation services or for the operation of
17 a juvenile detention facility shall be awarded until the contractor
18 demonstrates to the satisfaction of the county that the contractor
19 has obtained liability insurance with the limits specified by The
20 Governmental Tort Claims Act against lawsuits arising from the
21 operation of the juvenile detention facility by the contractor, or, if
22 if the contract is for the providing of transportation services, the
23 contractor has obtained liability insurance with the limits
24 specified by The Governmental Tort Claims Act against lawsuits

1 arising from the transportation of juveniles as authorized by
2 subsection ~~A~~ B of this section.

3 D. The Board of Juvenile Affairs, from monies appropriated for
4 that purpose, shall develop, adopt, and implement a plan for secure
5 juvenile detention services and alternatives to secure detention, to
6 be known as the State Plan for the Establishment of Juvenile
7 Detention Services, which shall provide for the establishment of
8 juvenile detention facilities and services with due regard for
9 appropriate geographical distribution and existing juvenile
10 detention programs operated by statutorily constituted juvenile
11 bureaus. ~~Said~~ The plan may be amended or modified by the Board as
12 necessary and appropriate. Until ~~said~~ such plan is adopted by the
13 Board, the plan adopted by the Commission for Human Services shall
14 remain in effect.

15 1. The Board of Juvenile Affairs shall establish procedures for
16 the letting of contracts or grants, including grants to existing
17 juvenile detention programs operated by statutorily constituted
18 juvenile bureaus, and the conditions and requirements for the
19 receipt of ~~said~~ such grants or contracts for juvenile detention
20 services and facilities as provided in this section and Section 2-7-
21 401 of this title. A copy of such procedures shall be made
22 available to any member of the general public upon request. All
23 such grants or contracts shall require the participation of local
24 resources in the funding of juvenile detention facilities. A

1 contract for services shall be based upon a formula approved by the
2 Board which shall set the contract amount in accordance with the
3 services offered and the degree of compliance with standards for
4 certification.

5 2. The Board of Juvenile Affairs shall establish standards for
6 the certification of detention services and juvenile detention
7 facilities. Such standards may include, but not be limited to:

8 a. screening for detention~~+~~l

9 b. education and recreation opportunities for juveniles
10 in secure detention~~+~~l and

11 c. accreditation by the American Correctional
12 Association.

13 As a condition of continuing eligibility for grants or contracts,
14 secure juvenile detention services and facilities shall be certified
15 by the Board within two (2) years of the date of the initial grant
16 or contract.

17 E. 1. When a juvenile in the custody of the Office of Juvenile
18 Affairs is ordered to be detained in a juvenile detention facility,
19 the Office shall provide all medications prescribed for such
20 juvenile that are in the possession of the Office to the operator of
21 the juvenile detention facility no later than forty-eight (48) hours
22 following the juvenile's reception at the facility, at no charge to
23 the facility or operator.
24

1 2. The Office of Juvenile Affairs shall make reasonable efforts
2 to coordinate the acquisition of prescribed medication through the
3 juvenile's parent or guardian. The Office shall not be required to
4 transport medication between parents or guardians and juvenile
5 detention facilities.

6 3. Subject to the availability of funds, the Office of Juvenile
7 Affairs shall provide reimbursement to juvenile detention facilities
8 to offset the cost of necessary prescription medications for
9 juveniles in detention. Reimbursements under this paragraph shall
10 be limited to medications provided to juveniles detained pursuant to
11 an order of a district court of this state.

12 F. The State Department of Health, with the assistance of the
13 Office of Juvenile Affairs, shall establish standards for the
14 certification of jails, adult lockups, and adult detention
15 facilities used to detain juveniles. Such standards shall include
16 but not be limited to: ~~separation~~

17 1. Separation of juveniles from adults; ~~supervision~~

18 2. Supervision of juveniles; and ~~health~~

19 3. Health and safety measures for juveniles.

20 The State Department of Health is authorized to inspect any jail,
21 adult lockup, or adult detention facility for the purpose of
22 determining compliance with such standards. No jail, adult lockup,
23 or other adult detention facility shall be used to detain juveniles
24 unless such jail, adult lockup, or other adult detention facility

1 complies with the standards established by the State Department of
2 Health and is designated as a place for the detention of juveniles
3 by the judge having juvenile docket responsibility in the county
4 from a list of eligible facilities supplied by the State Department
5 of Health.

6 The development and approval of the standards provided for in
7 this ~~paragraph~~ subsection shall comply with the provisions of the
8 Administrative Procedures Act.

9 ~~F.~~ G. The State ~~Board~~ Commissioner of Health shall promulgate
10 rules providing for the routine recording and reporting of the use
11 of any adult jail, lockup or other adult facility for the detention
12 of any person under the age of eighteen (18).

13 1. For the purpose of ensuring the uniformity and compatibility
14 of information related to the detention of persons under age
15 eighteen (18), ~~said~~ such rules shall be reviewed and approved by the
16 Oklahoma Commission on Children and Youth prior to their adoption by
17 the Board; ~~and.~~

18 2. Records of detention shall be reviewed during each routine
19 inspection of adult jails, lockups or other adult detention
20 facilities inspected by the State Department of Health and a
21 statistical report of ~~said~~ such detentions shall be submitted to the
22 Office of Juvenile Affairs at least every six (6) months in a form
23 approved by the Board of Juvenile Affairs.

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 2-3-103A of Title 10A, unless
3 there is created a duplication in numbering, reads as follows:

4 There is hereby created in the State Treasury a revolving fund
5 for the Office of Juvenile Affairs to be designated the "Juvenile
6 Detention Prescription Medication Fund". The fund shall be a
7 continuing fund, not subject to fiscal year limitations, and shall
8 consist of all monies received by the Office from legislative
9 appropriations provided for the purpose of reimbursing juvenile
10 detention facilities to offset the cost of necessary prescription
11 medications for juveniles in detention as provided by subsection E
12 of Section 2-3-103 of Title 10A of the Oklahoma Statutes. All
13 monies accruing to the credit of the fund are hereby appropriated
14 and may be budgeted and expended by the Office for the purpose
15 provided for in this section. Expenditures from the fund shall be
16 made upon warrants issued by the State Treasurer against claims
17 filed as prescribed by law with the Director of the Office of
18 Management and Enterprise Services for approval and payment.

19 SECTION 3. This act shall become effective November 1, 2026.
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